

Before the
FEDERAL MARITIME COMMISSION

Docket No. 25-04

CHINA UNITED LINES, LTD.

v.

AMAZON.COM SERVICES, LLC,

AMAZON LOGISTICS, INC. AND

BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.

JOINT STATUS REPORT AND PROPOSED BRIEFING SCHEDULE

Pursuant to the Presiding Officer's direction in the Third Revised Scheduling Order, Complainant China United Lines, Ltd. ("Complainant" or "China United"), and Respondents Amazon.com Services, LLC ("Amazon Services"), Amazon Logistics, Inc. ("Amazon Logistics"), and Beijing Century Joyo Courier Service Co., Ltd ("Beijing Century") (collectively "Respondents"), by and through their undersigned counsel, hereby submit this Joint Status Report and Proposed Briefing Schedule.

A. Complainant's Position and Proposed Schedule

Counsel for Complainant respectfully requests that the Presiding Officer enter an order setting this proceeding for briefing on the merits beginning no earlier than July 24, 2026. Counsel for Complainant is also counsel for China United Lines, Ltd. in the related matter between China United Lines, Ltd. and Amazon Services, currently pending in the Southern District of New York,

Case No. 23-Civ-10213 (PKC) (the “SDNY Case”). Trial for the SDNY case has just been set for June 15, 2026; China United’s trial brief must be submitted by April 30, 2026. Moreover, counsel for Complainant is counsel for BAL Container Line Co., Ltd. (“BAL”) in the detention and demurrage dispute initiated by 20230930-DK-Butterfly-1, Inc., currently proceeding in front of the Presiding Officer at Docket No. 25-01. Pursuant to the Fifth Revised Scheduling Order there, BAL Container Line Co., must provide its opposition brief, proposed findings of fact, and appendix by June 18, 2026. Counsel for Complainant anticipates that preparation for trial, and trial in the SDNY Case, alongside compiling BAL’s submissions in Docket No. 25-01, will require significant time and effort, due to the complexities of the respective cases, and the overlapping schedules between them. As a result, Complainant respectfully requests that the Presiding Officer set the date for submission of its initial brief, proposed findings of fact, and appendix here no earlier than July 24, 2026. Entering Complainant’s Proposed Schedule would account for the scheduling constraints amongst counsel for Complainant’s caseload, increase efficiency between this proceeding and the New York Case, and alleviate any potential prejudice Complainant would face by briefing this proceeding simultaneously with the New York Case.

Counsel for Complainant has discussed this proposal with counsel for Respondents, who do not object to Complainant’s proposed briefing timeframe. Counsel for Respondents submits, however, that Respondents should instead be permitted to file a motion for summary decision. China United disagrees. As the party with the burden of proof in this proceeding, China United respectfully requests the opportunity to fully address the merits of its case via initial brief—not just by opposing a motion for summary decision. Contrary to Respondents’ position, China United is prepared to submit evidence of Amazon’s fraud, deceit and concealment, which it utilized to access lower-than-otherwise applicable rates for carriage of containerized cargo. China United

believes the most fulsome venue to do so is via briefing on the merits. Moreover, China United requested an oral hearing in conjunction with merits briefing in the First Amended Complaint. China United reasserts that request here and submits that proceeding by summary decision would deprive China United of the chance to present the nuances of its case to the Presiding Officer, and answer any questions the Presiding Officer may have regarding Complainant's case, in real-time. China United submits the following proposed schedule:

Date	Event
July 24, 2026	Complainant's Initial Brief, Proposed Findings of Fact, and Appendix
August 24, 2026	Respondent's Opposition brief, Proposed Findings of Fact, and Appendix
September 9, 2026	Complainant's Reply Brief and Responses to Respondent's Proposed Findings of Fact

B. Respondents' Position and Proposed Schedule

China United has abandoned the fraudulent inducement theory that was identified in the Your Honor's June 6 Order as the basis of its remaining claim, and discovery has not disclosed any evidence in support of the showing it must make of fraud, deceit, or concealment to obtain lower rates. This case is thus suitable for summary disposition and Respondents intend to file a motion for summary disposition when discovery is completed. Respondents' position is that motions for summary disposition are a more efficient way to proceed to resolve the case or, at a minimum, to narrow any remaining issues. For example, summary disposition briefing will focus on whether China United has any basis for liability on its remaining claim and, thus, will not require extensive briefing of reparations issues. Any issues not resolved by summary disposition

can be left for further proceedings, an approach that has been successful in helping expedite other cases such as *IMCC v OCEMA*, Dkt. No. 20-14.

The below schedule contemplates simultaneous briefing of motions for summary disposition to begin a month before Complainant's proposal, providing further efficiencies.

Date	Event
June 26, 2026	Filing of any Motion for Summary Disposition
July 24, 2026	Filing of any Opposition Brief
August 10, 2026	Filing of Any Reply Brief

WHEREFORE the parties request that the Presiding Officer enter an Order resolving the parties' conflicting briefing requests and setting a briefing schedule in this proceeding.

Respectfully submitted,

Dated March 16, 2026

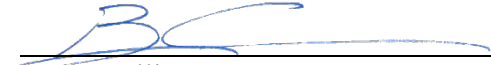
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 16th day of March 2026, a true and correct copy of the foregoing **Joint Status Report Regarding Proposed Briefing Schedule** was served via electronic mail on:

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